

TENTATIVE RULING

Case: **Ge v. Wu**

Case No. CV2025-2807

Hearing Date: **May 19, 2026**

Department Eleven

9:00 a.m.

Plaintiffs William W. Ge, Helen H. Wu, Wei Li, Jiaoming Chen, Ken Cong Wu, and Zhen Dai's motion to compel further responses to special interrogatories and requests for admission (set one) is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2033.290.) Plaintiffs failed to show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b)(1), 2033.290, subd. (b)(1).) Specifically, plaintiffs sent one meet and confer letter and failed to respond to defendants Zhong Wu and Nancy He Wu's meet and confer letter until the day that they filed this motion. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434-1435 & 1439 ["the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate"]; Tan decl., ¶¶ 6-8, Exhibit 4; Flaxman decl., ¶¶ 6-8, Exhibit B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Juarez v. American Honda Motor Co., Inc.**
Case No. CV2024-3018

Hearing Date: **May 19, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Adam Luis Juarez’s motion for attorney fees, costs and expenses is **GRANTED IN PART**. (Civ. Code, § 1794, subd. (d).) For purposes of Civil Code section 1794(d), plaintiff is the prevailing party. (Youabian decl., ¶ 25, Exhibit 1, § 2 [“Defendant agrees that Plaintiff is the prevailing party”].) The Court finds the requested hourly rates for Mr. Youabian and Mr. Khorovsky’s work are reasonable. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [“The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.”]; *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682; Youabian decl., ¶¶ 7-13; Khorovsky decl., ¶¶ 4-8.) However, plaintiff only submitted evidence supporting Mr. Youabian and Mr. Khorovsky’s hourly rates. (See, e.g., Youabian decl.) Therefore, the Court declines to award attorneys’ fees for time incurred by individuals other than Mr. Youabian and Mr. Khorovsky. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 [“The prevailing party and fee applicant bears ‘the burden of showing that the fees incurred were... reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount’], internal quotation marks omitted.) The Court finds that plaintiff has established the hours spent by Mr. Youabian and Mr. Khorovsky were reasonable. (See *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488; Youabian decl., ¶¶ 31-34, Exhibit 2; Khorovsky decl., ¶¶ 9-11.)

Further, the Court declines to impose an “across-the-board” 20 percent reduction. Defendant American Honda Motor Co., Inc. does not justify a 20 percent reduction as to all counsel’s billing entries. (*Mikhaeilpoor, supra*, 48 Cal.App.5th at pp. 248-250; Opposition, p. 3.)

Finally, plaintiff has shown that the requested costs were “reasonably incurred...in connection with the commencement and prosecution of” this action. (Civ. Code, § 1794, subd. (d); Youabian decl., ¶ 35, Exhibits 3-4.)

Therefore, the Court awards plaintiff **\$16,224.50** in attorneys’ fees and **\$737.82** in costs, totaling **\$16,962.32**.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.